

Amendment No. 1 to SB0591

Gardenhire  
Signature of Sponsor

**AMEND Senate Bill No. 591\***

**House Bill No. 1273**

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, Part 3, is amended by adding the following new section:

(a) As used in this section:

(1) "Child care agency" means the same as defined in § 71-3-501;

(2) "Mass violence" means the same as defined in § 39-16-517(a);

(3) "Means of communication" means the same as defined in § 39-16-517(a); and

(4) "Property" means any building, motor vehicle, grounds, recreational area, athletic field, or other property owned, used, or operated by the child care agency, preschool, or religious institution.

(b)

(1) A person who recklessly, by any means of communication, threatens to commit an act of mass violence on the property of a child care agency, preschool, or religious institution commits a Class E felony.

(2) This section does not apply to a person with an intellectual disability, as defined in § 52-1-101.

(c) As a condition of bail or other pretrial release, the court may, in its discretion, order the defendant to undergo an evaluation, under title 33, chapter 6, part 4, to determine whether the defendant poses a substantial likelihood of serious harm to the defendant or others.

(d)

(1) Any person who has knowledge of a threat of mass violence on the property of a child care agency, preschool, or religious institution shall report the threat immediately to:

(A) The local law enforcement agency with jurisdiction over the property; and

(B) The child care agency, preschool, or religious institution that is subject to the threat of mass violence.

(2) The report must include, to the extent known by the reporter, the nature of the threat of mass violence, the name and address of the person making the threat, the facts requiring the report, and any other pertinent information.

(3) Any person who has knowledge of a threat of mass violence on the property of a child care agency, preschool, or religious institution and knowingly fails to report the threat commits a Class B misdemeanor.

(e) In addition to any other penalty authorized by law, a sentencing court may order a person convicted under subsection (b) to pay restitution, including costs and damages resulting from the disruption of the normal activity that would have otherwise occurred on the property of the child care agency, preschool, or religious institution but for the threat to commit an act of mass violence.

(f) If a juvenile is adjudicated delinquent for a violation of subsection (b) pursuant to title 37, chapter 1, part 1, then the disposition must include, in addition to any other disposition authorized by law, the suspension of the juvenile's driving privileges or ability to obtain a driver license for a period of one (1) year in accordance with the procedure set out in title 55, chapter 10, part 7.

SECTION 2. Tennessee Code Annotated, Section 39-16-517(c), is amended by deleting the language "§ 33-7-301" and substituting "title 33, chapter 6, part 4".

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.